

HISTORY HACK · DOCUMENT-BASED QUESTION

Analyze the following two primary source excerpts and construct a document-based argument about the constitutional crisis created by Japanese American internment.

US.48 — Explain the progression of key events and President Franklin D. Roosevelt’s response to world crises that lead to U.S. entry into World War II, including the Quarantine Speech, the Four Freedoms Speech, the Atlantic Charter, the Lend-Lease Act, and Pearl Harbor.

US.54 — Describe the constitutional issues, conditions, and impact of the internment of Japanese Americans on the United States, including the Fred Korematsu v. United States of America decision.

TEACHER EDITION — scoring guide and expected evidence. Not for student distribution.

Name _____ Class _____ Date _____

The sources

Document A

Excerpt from Executive Order 9066, issued by President Franklin D. Roosevelt, February 19, 1942
(Federal Register, 1942; National Archives, public domain)

“I hereby authorize and direct the Secretary of War, and the Military Commanders whom he may from time to time designate, whenever he or any designated Commander deems such action necessary or desirable, to prescribe military areas in such places and of such extent as he or the appropriate Military Commander may determine, from which any or all persons may be excluded...”

SOURCE IT — DOCUMENT A

H — Historical context

What was happening when
this was made?

I — Intended audience

Who was meant to read or
hear it?

P — Purpose

What was it trying to make
the audience do or think?

P — Point of view

Who is speaking, and how
does that shape it?

Document B

Excerpt from Justice Robert Jackson's dissent in *Korematsu v. United States*, 323 U.S. 214 (1944)
(Supreme Court of the United States, public domain)

“But once a judicial opinion rationalizes such an order to show that it conforms to the Constitution, or rather rationalizes the Constitution to show that the Constitution sanctions such an order, the Court for all time has validated the principle of racial discrimination in criminal procedure... The principle then lies about like a loaded weapon ready for the hand of any authority that can bring forward a plausible claim of an urgent need.”

SOURCE IT — DOCUMENT B

H — Historical context

What was happening when
this was made?

I — Intended audience

Who was meant to read or
hear it?

P — Purpose

What was it trying to make
the audience do or think?

P — Point of view

Who is speaking, and how
does that shape it?

The question

Using HIPP analysis for each document and your knowledge of Japanese American internment, construct an argument evaluating: (1) what EO 9066 reveals about the limits of civil liberties in wartime; (2) how Jackson's dissent predicted future abuses of emergency power; (3) the long-term legacy of the Korematsu ruling. Include at least two pieces of outside evidence, including one from after 1945.

Plan your answer

Your claim	
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Source	Evidence you will use	Why it supports your claim
Document A		
Document B		
Outside knowledge		

Write your response

Scoring guide

Pts	6-point scale
6	Exemplary. Sophisticated thesis about constitutional failure and Jackson's prophecy. Both documents with full HIPP — including EO 9066's deliberately vague language as constitutional evasion. Two or more outside evidence pieces including one post-1945 source. Jackson's 'loaded weapon' metaphor explicitly analyzed and connected to post-1945 cases. Synthesis of how Doc A enabled Doc B's concern.
5	Advanced. Clear thesis. Both documents with mostly complete HIPP. Post-1945 evidence present. Jackson's prophecy connected to later cases.
4	Proficient. Clear thesis. Both documents with three+ HIPP elements. One post-1945 evidence piece. Constitutional analysis present.
3	Adequate. Thesis present. One document fully analyzed. Some outside evidence. Partial constitutional analysis.
2	Developing. Minimal thesis. Documents described without HIPP. Little outside evidence. No constitutional analysis.
1	Beginning. No thesis. One document without analysis.
0	No response or completely off-topic.

Expected evidence and document analysis. DOCUMENT ANALYSIS EXPECTATIONS: EO 9066 — deliberately avoids naming Japanese Americans; this racial evasion in legal language is historically significant. Jackson dissent — 'loaded weapon' metaphor should be analyzed as legal prophecy, not just protest. KEY EVIDENCE EXPECTED: EO 9066 (February 19, 1942); 120,000 internees (70,000 citizens); Manzanar; Korematsu 6-3 majority decision; Murphy, Jackson, Roberts dissents; Civil Liberties Act of 1988; Trump v. Hawaii (2018) — formally overruled Korematsu.

Sourcing. Every document above carries its own citation as written in the item record. Verify each against the holding institution before classroom use — an unsourced primary source is worse than a missing one.

History Hack · TroopToTeacher Technologies. Tennessee Academic Standards 2027-28. classroom-formative · pre-field-test — this activity has not been field-tested and its scoring guide is not calibrated.